

24CV02783 Global Assets Liens & Foreclosures LLC vs Alpha Core Inc

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-31

Motion: CMC; Right to Attach

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Tentative Ruling: Global Assets Liens & Foreclosures LLC vs Alpha Core Inc

Case Number

24CV02783

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/31/2026 - 10:00

Nature of Proceedings

CMC; Right to Attach

Tentative Ruling

On May 20, 2024, plaintiff Global Assets Liens & Foreclosures, LLC, (Global) filed its complaint against defendant Alpha Core, Inc. (Alpha) asserting claims for breach of contract and common counts. A default was originally entered against Alpha on January 28, 2025. On February 20, 2025, Alpha filed its motion to set aside the default. On August 4, 2025, the court granted Alpha's motion and set aside the default. On September 18, 2025, Alpha filed its answer to the complaint. In its motion to set aside default, in its answer, and in subsequent documents, Alpha has appeared by counsel, attorney Sydney Hall, whose office address of record is in San Mateo, California.

On March 10, 2026, Global filed its application for right to attach order and for issuance of writ of attachment, together with supporting papers. All proofs of service of these papers shows service by mail solely on Alpha's address in Oakland, California. 'Except for service of a subpoena or other process to require the attendance of the defendant or service of a paper to bring the defendant into contempt, if the defendant has an attorney of record in the action, service shall be made on the attorney rather than on the defendant.' (Code Civ. Proc., § 482.070, subd. (e).) There is no proof of service showing service, timely or otherwise, on Alpha's attorney of record. Accordingly, hearing on this application and the case management

conference also set for this date are continued to August 31, 2026, to allow for service by plaintiff of notice of the application, and notice of continuance of the hearing and case management conference.” (Minute Order, June 29, 2026, p. 1.)

No proof of service has been filed; no opposition or other response has been filed. If counsel does not appear for the hearing on this matter and show proof of service (see Code Civ. Proc., §§ 482.070, subd. (f), 684.210), this application will be taken off calendar. If counsel appears at the hearing with proof of service, hearing on the application will be continued to an appropriate date.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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